



CHAPTER 23.

An Act to make further provision as to the submergence of load lines and as to the life-saving appliances of fishing boats. A.D. 1937.
—
[25th March 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) If the master of a ship to which this section applies takes the ship to sea when she is loaded in contravention of section forty-four of the Merchant Shipping (Safety and Load Line Conventions) Act, 1932, or if any other person sends or is party to sending any such ship to sea loaded as aforesaid having reason to believe that she is so loaded, he shall, in addition to any penalty to which he may be liable under the said section forty-four, be liable—

Penalty for taking or sending ship to sea with load line submerged.
22 & 23 Geo. 5. c. 9.

- (a) on conviction on indictment, to imprisonment for a term not exceeding two years; or
- (b) on summary conviction, to imprisonment for a term not exceeding six months.

(2) This section applies to all British load line ships registered in the United Kingdom and to all other British ships to which the said section forty-four for the time

A.D. 1937. — being applies by virtue of an Order in Council made under subsection (3) of section sixty-four of the said Act.

(3) This section shall extend, subject to such modifications and adaptations (if any) as may be made by Order in Council, to all parts of His Majesty's dominions to which the said section forty-four for the time being extends by virtue of an Order in Council made under subsection (1) of the said section sixty-four.

Application
to fishing
boats of
rules for
life-saving
appliances.
57 & 58 Vict.
c. 60.

2. Subsection (3) of section four hundred and twenty-seven of the Merchant Shipping Act, 1894 (which provides that the rules for life-saving appliances made under that section shall not apply to fishing boats) is hereby repealed, and accordingly section three hundred and seventy-five of, and the Fifteenth Schedule to, that Act (which contain special provision as to the boats and lifebuoys to be carried by fishing boats) are also hereby repealed.

Short title
and citation.

3.—(1) This Act may be cited as the Merchant Shipping Act, 1937.

(2) This Act shall be construed as one with the Merchant Shipping Acts, 1894 to 1937, and shall be included among the Acts which may be cited together as the Merchant Shipping Acts, 1894 to 1937.

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